

		<i>CRC Rule 3.1320</i> states that "Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses." Defendant does not demurrer to a specific cause of action but instead states in the notice that the demurrer is "on the ground that the Second Amended Complaint fails to state facts sufficient to constitute a cause of action against these(sic) defendant." (Demurrer at 2:18-19) "A demurrer which attacks an entire pleading should be overruled if one of the counts therein is not vulnerable to the objection." (<i>Bacon v. Wahrhaftig</i> (1950) 97 Cal. App. 2d 599, 605) Here, the first cause of action for Breach of the Buy Sell Agreement is sufficiently pled. "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.) Plaintiffs allege that on 1/25/25, they entered into a written buy-sell agreement with Watermeier. (SAC ¶17) Plaintiffs allege they performed all obligations but that Watermeier breached the agreement when he prematurely declared the agreement null and void. (SAC ¶¶ 18, 20, 35, 36) Accordingly, the demurrer is OVERRULED. Motion to Strike <i>CRC Rule 3.1322</i> requires that "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense." Here, the notice does not identify any portion of the complaint sought to be stricken. Instead the notice states that defendant seeks to strike the entire complaint. However, the motion does not provide authority which would support striking the entire complaint. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v. City of Fresno</i> (1984) 151 Cal.App.3d 635, <i>In Re Marriage of Nichols</i> (1994) 27 Cal.App.4th 661, 673; <i>Utz v. Aureguy</i> (1952) 109 Cal.App.2d 803, 807) Accordingly, the motion to strike is DENIED. Defendant shall file his answer to the second amended complaint within 10 days. <i>Plaintiffs shall give notice.</i>
9.	Yuh v. Western 24-1388773	Defendant Tin Westen's unopposed motion for summary judgment on the complaint of plaintiff Lundar Yuh is GRANTED. Defendant has met his initial burden to show Plaintiff cannot meet the elements of his legal malpractice claim, including that he would have

		obtained a better outcome in the underlying action but for Defendant's alleged conduct. (<i>Code Civ. Proc.</i>, § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 825, 851 [burden]; <i>Namikas v. Miller</i> (2014) 225 Cal.App.4th 1574, 1581 [to establish causation, plaintiff must show that he would have obtained a better settlement or a better result at trial with "legal certainty"]; Defendant's Separate Statement of Undisputed Material Facts 1-9.) Plaintiff did not oppose the motion and thus, failed to meet his shifted burden to show a triable issue of material fact. (<i>Aguilar, supra</i>, 25 Cal.4th at p. 851.) <i>Counsel for Defendant shall give notice of this ruling.</i>
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